

EXHIBIT A



New York City Comptroller
Scott M. Stringer

Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

Form Version: NYC-COMPT-BLA-PI1-D

Personal Injury Claim Form

Electronically filed claims must be filed at the NYC Comptroller's Website. If your claim is not resolved within 1 year and 90 days from the date of occurrence you must start legal action to preserve your rights.

I am filing: ☐ On behalf of myself.

☐ On behalf of someone else. If on someone else's behalf, please provide the following information.

Last Name:

First Name:

Relationship to the claimant:

Claimant Information

*Last Name: White

*First Name: Justin

*Address: 857 Crotona Park North

Address 2: Apartment #3D

*City: Bronx

*State: NEW YORK

*Zip Code: 10460

*Country: USA

Date of Birth: *Format: MM/DD/YYYY*

Soc. Sec. #

HICN:
(Medicare #)

Date of Death: *Format: MM/DD/YYYY*

Phone:

*Email Address:

*Retype Email Address:

Occupation:

City Employee? ☐ Yes ☐ No ☐ NA

Gender ☐ Male ☐ Female ☐ Other

☒ Attorney is filing.

Attorney Information (If claimant is represented by attorney)

Firm or Last Name: Law Office of Elliot S. Kay

Firm or First Name:

Address: 888 Grand Concourse, Suite 1H

Address 2:

City: Bronx

State: NEW YORK

Zip Code: 10451

Tax ID:

Phone #: (212) 939-7251

*Email Address: elliotaskay@gmail.com

*Retype Email Address: elliotaskay@gmail.com

The time and place where the claim arose

*Date of Incident: 10/5/2018 *Format: MM/DD/YYYY*

Time of Incident: 1:00PM *Format: HH:MM AM/PM*

*Location of Incident: vicinity of 887 Crotona Park North in Bronx County

Address:

Address 2:

City:

*State:

Borough:

NEW YORK

* Denotes required fields. A Claimant OR an Attorney Email Address is required.



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***Manner in which
claim arose:**

This claim is against the CITY OF NEW YORK and POLICE OFFICER DYWAYNE HARRIS (shield # 10473). This claim is for: False Arrest, False Imprisonment, Malicious Prosecution, Assault and Battery.

The incident complained of started on October 5, 2018, at approximately 1:00 p.m., in the vicinity of 887 Crotona Park North in Bronx County. At that time and place, members of the NYPD, including POLICE OFFICER DYWAYNE HARRIS (shield # 10473), approached Claimant and violently handcuffed claimant. Next, Claimant was taken to a police precinct where he was searched and forced to remain in a holding cell. The incident continued at Bronx County Central Booking. Claimant was released from custody on or about October 7, 2018.

Claimant was maliciously prosecuted until all charges were dismissed and sealed on June 25, 2019.



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**The items of
damage or injuries
claimed are
(include dollar
amounts):**

Claimant sustained multiple personal and emotional injuries, including loss of liberty, emotional distress, loss of enjoyment of life, humiliation, the full extent of which is not presently known.

Claimant felt grave fear and intimidation for claimant's safety. Claimant was assaulted, battered, falsely arrested/imprisoned and maliciously prosecuted as a result of the actions of the CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and their agents, servants and employees, including POLICE OFFICER DYWAYNE HARRIS (shield # 10473).

The matter was terminated in Claimant's favor on June 25, 2019.



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Medical Information

1st Treatment Date: *Format: MM/DD/YYYY*

Hospital/Name:

Address:

Address 2:

City:

State:

Zip Code:

Date Treated in
Emergency Room: *Format: MM/DD/YYYY*

Was claimant taken to hospital by ☐ Yes ☐ No ☐ NA
an ambulance?

Employment Information (If claiming lost wages)

Employer's Name:

Address:

Address 2:

City:

State:

Zip Code:

Work Days Lost:

Amount Earned
Weekly:

Treating Physician Information

Last Name:

First Name:

Address:

Address 2:

City:

State:

Zip Code:

Witness 1 Information

Last Name:

First Name:

Address:

Address 2:

City:

State:

Zip Code: Phone:

Witness 2 Information

Last Name:

First Name:

Address:

Address 2:

City:

State:

Zip Code: Phone:

Witness 3 Information

Last Name:

First Name:

Address:

Address 2:

City:

State:

Zip Code: Phone:

Witness 4 Information

Last Name:

First Name:

Address:

Address 2:

City:

State:

Zip Code: Phone:



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Complete if claim involves a NYC vehicle

Owner of vehicle claimant was traveling in

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

Non-City vehicle driver

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

Insurance Information

Insurance Company
Name:

Address

Address 2:

City:

State:

Zip Code:

Policy #:

Phone #:

Non-City vehicle information

Make, Model, Year
of Vehicle:

Plate #:

VIN #:

City vehicle information

Plate #:

City Driver Last
Name:

City Driver First
Name:

**Description of
claimant:**

☐ Driver

☐ Passenger

☐ Pedestrian

☐ Bicyclist

☐ Motorcyclist

☐ Other

**Total Amount
Claimed:**

\$1,000,000.00

Format: Do not include "\$" or ",".

*The **Total Amount Claimed** can only be entered once the following
required fields are entered:*

Claimant Last Name

Claimant First Name

Claimant Address, City, State, Zip Code, and Country

Claimant Email or Attorney Email

Date of Incident

Location of Incident (including State)

Manner in which claim arose

*I certify that all information contained in this notice is true and correct to the best of my knowledge and belief. I understand that the willful
making of any false statement of material fact herein will subject me to criminal penalties and civil liabilities.*

eCLAIM Receipt

You have successfully filed your claim.

By successfully filing your claim, you have certified that all information provided is true and correct to the best of your knowledge and belief. You also understand that the willful making of any false statement of material fact herein may subject you to criminal penalties and civil liabilities.

Please allow up to 30 days to receive an email acknowledging your claim.

If you have any questions please contact 212-669-3916.

Your Receipt Number is the following:

201900056826

You uploaded:

Claim Form: 1

Supporting Documents:0

7/1/2019 2:04 PM

Claimant Last Name:White

Claimant First Name:Justin